

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 21-02

**YSN IMPORTS INC. d/b/a FLAME KING,
Complainant,**

v.

**FEIGE “PEGGY” OBERLANDER, U SHIPPERS GROUP INC., U SHIPPERS GROUP
MANAGEMENT CO., INC.,
Respondents.**

RESPONDENTS’ OPPOSITION TO YSN’S MOTION TO EXTEND DISCOVERY

Feige “Peggy” Oberlander, U Shippers Group Inc., and U Shippers Group Management Co. Inc. (collectively “Respondents”) oppose YSN Imports Inc.’s (“YSN’s”) Motion to Extend Discovery.

Introduction

The Scheduling Order has already been extended twice, and Complainant now seeks a third extension. In the Court’s prior order extending the Scheduling Order, the Court warned the parties to adhere to the new schedule. Respondents including Ms. Oberlander who recently gave birth to a child worked tirelessly to collect and produce responsive documents while defending the claims made by YSN. It has become even more critical for Respondents that the claims against them be resolved expeditiously, as through discovery U Shippers Group Inc. (the “Association”) learned that YSN is not just a former member of the Association, but started its own Shipping Association, using its claims against the Association to obtain a competitive advantage over the Association.

As demonstrated below, YSN has acted in a dilatory manner, waiting more than 13 days *after* fact discovery closed and months after it identified documents which it purportedly believes

are “critical” to the action which it says were not produced and now seeks a last-minute reprieve. There is no legitimate basis for the relief sought. YSN’s motion is a transparent attempt to avoid the consequences of its failure to prepare an expert report in support of its claims. The motion to extend should be denied.

Procedural Background

On October 7, 2021, the Presiding Judge entered an Order on Motion and Revised Scheduling Order (Docket No. 30). In that Order, the Presiding Judge stated that motions seeking extensions of deadlines should be filed as soon as practicable. The Order also provided that failure to comply with deadlines may result in sanctions, including dismissal, *citing Kawasaki Kisen Kaisha, Ltd., v. The Port Authority of New York and New Jersey*, Docket No. 11-12, 2014 FMC LEXIS 36 (FMC Nov. 20, 2014) (Commission affirmed ALJ’s order dismissing proceeding for willful failure to provide discovery).

On November 18, 2021, the Presiding Judge entered a Third Amended Scheduling Order (Dkt. 34) providing that fact depositions were to be completed by December 23, 2021, and that the parties were to identify experts and provide expert reports by January 7, 2022.

YSN Has Failed To Act With Diligence And Its Motion Should Be Denied

On January 7, 2022, Respondents identified their expert and filed that expert report with the Court pending the Court’s decision on Complainant’s motion to extend discovery. On January 6, 2022, only *one day* before the deadline for identifying experts, YSN sought to extend the deadline by over 30 days until February 11, 2022. Its purported justification for doing so is alleged deficiencies in Respondents’ responses to one of its document requests. First, as reflected in Respondents’ Opposition to YSN’s Motion to Compel, filed concurrently, the justification for that motion is wholly lacking in merit.

Second, even if the Respondents document production did not include certain financial documents relevant to the issue in dispute, YSN's request to extend the deadline for discovery and identify experts and provide expert reports is untimely. Respondents served responses to YSN's document requests almost three months ago on October 22, 2021. As reflected in YSN's Motion to Compel, thirty-eight (38) days later on November 29, 2021, YSN *first* identified alleged defects in Respondents' document request responses to Request No. 8. Another thirty-eight (38) days later, on January 6, 2022, YSN filed its motion to compel and sought to extend the deadline for identifying reports and providing expert reports. This was thirteen (13) days after the deadline for completing fact depositions and one day before the January 7, 2022, deadline for expert reports.

While YSN now asserts that this document production is crucial in its ability to identify its expert, it provides no legitimate basis for its lack of diligence to seek what it now claims are critical documents. Such an inordinate delay in seeking relief fails to comply with the Presiding Judge's directive that motions seeking extensions of deadlines should be filed as soon as practicable.

Any purported reliance upon the date of completion of the Oberlander deposition is completely misguided. In the first place, Respondents' objections to the document requests were served well before the deposition, and YSN had no reason to await the deposition to file its motion to compel. Further, nothing that occurred during the Oberlander deposition explains why YSN waited until after fact discovery closed to decide it needed such additional documents. Indeed, the parties had discussions about such additional documents more than a month before Ms. Oberlander's deposition.

Moreover, the deposition of Ms. Oberlander was completed on December 16, 2021, twenty one (21) days before the extension was sought. None of the testimony therein was a surprise and justifies the extension that is sought. To the extent that YSN purports to rely upon the fact that it

did not receive the transcript until early January, that argument is specious. Obviously if YSN believed that anything testified to therein justified its inability to comply with the existing scheduling order, it could have requested an expedited transcript. Having failed to do so, the relief sought is untimely and should be denied. YSN's dilatory conduct and its attempt to further drag out the litigation is especially harmful to the Respondents because absent a resolution of case, the Association's ability to negotiate new service contracts for 2022 is being jeopardized.

The Court previously warned the parties that any motion to extend should be made as soon as practicable. YSN did not only fail to comply with that admonition, but brings this motion 13 days after discovery has closed, one day before expert reports were due, and months after the purported documents it needs were identified. Respondents complied with the Court ordered schedule, prepared their expert report, and respectfully request that the Court not excuse YSN's untimely motion to extend the discovery schedule for a third time.

Dated: January 12, 2022

Respectfully submitted,

/s/ Brendan Collins

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CERTIFICATE OF SERVICE

I hereby certify that that on this 12th day of January, 2022, I have served the foregoing document upon all parties of record by electronically mailing a copy to each such person.

/s/Brendan Collins

Brendan Collins